Mississippi Black Codes

Mississippi Legislature · November 1865

Source: Mississippi Black Codes (Nov. 1865), text via Teaching American History. Public domain.

In late 1865, southern legislatures — operating under Andrew Johnson's lenient Reconstruction plan — passed 'Black Codes' that aimed to re-impose a system of unfree Black labor in the aftermath of emancipation. Mississippi's were among the harshest. They criminalized unemployment ('vagrancy'), restricted Black property rights, and apprenticed Black children to former enslavers. Northern outrage over the Black Codes helped fuel the shift to Radical Reconstruction in 1866–67.

Connect: Mississippi's 1865 Black Codes are the reason the 14th Amendment (Class 26) needed to be written. Point to ONE specific Black Code provision that the 14th Amendment invalidated.

Key Passages

Vagrancy Law

all freedmen, free Negroes, and mulattoes in this state over the age of eighteen years found . . . with no lawful employment or business, or found unlawfully assembling themselves together … shall be deemed vagrants; and, on conviction thereof, shall be fined in the sum of not exceeding, in the case of a freedman, free Negro, or mulatto, fifty dollars, and a white man, two hundred dollars, and imprisoned at the discretion of the court, the free Negro not exceeding ten days, and the white man not exceeding six months.

Apprentice Law

it shall be the duty of said Probate Court to order the clerk of said court to apprentice said minors to some competent and suitable person, on such terms as the court may direct … Provided, that the former owner of said minors shall have the preference when, in the opinion of the court, he or she shall be a suitable person for that purpose.

Civil Rights Law — labor contracts

every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free Negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause, and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Immediately after the Civil War (1865), with the 13th Amendment ending slavery and Southern governments operating under Johnson's lenient plan.
Intended Audience *Who was the source written for?*	White Mississippians, especially planters, law officers, and courts, along with freedpeople who would be bound by the laws.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	The all-white Mississippi legislature, made up of former Confederates and planters who wanted to restore control over Black labor; freedpeople had no say.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis on what changed and what stayed the same in Southern labor relations between 1860 and 1866.
2. Identify TWO specific provisions of these codes that recreated features of slavery.
3. Why did the Black Codes radicalize Northern Republicans in 1866?

The Mississippi Black Codes

State of Mississippi · 1865

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> Right after the Civil War, Mississippi's legislature passed laws to control freedpeople — forcing labor contracts, allowing forced "apprenticeship" of Black children, and criminalizing unemployment — recreating slavery in all but name and provoking Radical Reconstruction.

An Act to Confer Civil Rights on Freedmen

Section 1. Be it Enacted by the Legislature of the State of Mississippi, That all freedmen, free Negroes, and mulattoes may sue and be sued, . . . may acquire personal property . . . and may dispose of the same in the same manner and to the same extent that white persons may: [but no] freedman, free Negro, or mulatto [shall] rent or lease any lands or tenements, except in incorporated towns or cities, in which places the corporate authorities shall control the same.

[. . .]

Sec 6. Be it further enacted, That All contracts for labor made with freedmen, free Negroes, and mulattoes for a longer period than one month shall be in writing and in duplicate, attested and read to said freedman, free Negro, or mulatto by a beat, city, or county officer, or two disinterested white persons of the county in which the labor is to be performed, of which each party shall have one; . . . and if the laborer shall quit the service of the employer before expiration of his term of service without good cause, he shall forfeit his wages for that year, up to the time of quitting.

Sec 7. Be it further enacted, That every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free Negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause, and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars

[. . .]

An Act to Regulate the Relation of Master and Apprentice

Section 1. Be it enacted by the Legislature of the State of Mississippi, That it shall be the duty of all sheriffs, justices of the peace, and other civil officers of the several counties in this state to report to the Probate courts of their respective counties semiannually, at the January and July terms of said courts, all freedmen, free Negroes, and mulattoes under the age of eighteen within their respective counties, beats, or districts who are orphans, or whose parent or parents have not the means, or who refuse to provide for and support said minors; and thereupon it shall be the duty of said Probate Court to order the clerk of said court to apprentice said minors to some competent and suitable person, on such terms as the court may direct, having a particular care to the interest of said minors: Provided, that the former owner of said minors shall have the preference when, in the opinion of the court, he or she shall be a suitable person for that purpose. . . . Sec 3. Be it further enacted, That in the management and control of said apprentices, said master or mistress shall have power to inflict such moderate corporeal chastisement as a father or guardian is allowed to inflict on his or her child or ward at common law: Provided that in no case shall cruel or inhuman punishment be inflicted.

[. . .]

An Act to Amend the Vagrant Laws of the State

Sec 2. Be it further enacted, That all freedmen, free Negroes, and mulattoes in this state over the age of eighteen years found . . . with no lawful employment or business, or found unlawfully assembling themselves together . . . and all white persons so assembling with freedmen, free Negroes, or mulattoes, or usually associating with freedmen, free Negroes, or mulattoes

on terms of equality, or living in adultery or fornication with a freedwoman, free Negro, or mulatto, shall be deemed vagrants; and, on conviction thereof, shall be fined in the sum of not exceeding, in the case of a freedman, free Negro, or mulatto, fifty dollars, and a white man, two hundred dollars, and imprisoned at the discretion of the court, the free Negro not exceeding ten days, and the white man not exceeding six months.

[. . .]

An Act to Punish Certain Offenses Herein Named

Section 1. Be it enacted by the Legislature of the State of Mississippi, That no freedman, free Negro, or mulatto not in the military service of the United States government, and not licensed so to do by the board of police of his or her county, shall keep or carry firearms of any kind, or any ammunition, dirk, or Bowie knife . . . Sec 5. Be it further enacted, That if any freedman, free Negro, or mulatto convicted of any of the misdemeanors provided against in this act shall fail or refuse, for the space of five days after conviction, to pay the fine and costs imposed, such person shall be hired out by the sheriff or other officer . . . to any white person who will pay said fine and all costs and take such convict for the shortest time.

Words to know

mulattoes — people of mixed Black and white ancestry

tenements — rented land or buildings

attested — witnessed and certified as genuine

forfeit — lose as a penalty

apprentice — bind a child to work for a master in exchange for upkeep

corporeal chastisement — physical punishment

vagrants — people with no job or fixed home, treated as criminals

hired out — rented out as a laborer to whoever pays the fine